

HOUSE BILL 2090

By Powers

AN ACT to amend Tennessee Code Annotated, Title 68,
relative to swimming pools.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 68-14-302(11), is amended by
deleting the subdivision and substituting:

(11) "Public swimming pool":

(A) Means a structure of man-made materials, located either indoors or outdoors, used for bathing or swimming, or for instructional purposes in swimming, diving, or other aquatic activities by humans, together with buildings, appurtenances, and equipment used in connection with the structure;

(B) Includes spa-type, wading, special purpose pools, or water recreation attractions including, but not limited to, those operated at or in camps, child care facilities, cities, clubs, subdivisions, apartment buildings, counties, institutions, schools, motels, hotels, and mobile home parks to which admission may be gained with or without payment of a fee; and

(C) Does not include a privately owned, above-ground swimming pool that:

(1) Is sited indoors at the location of, or a location affiliated with, a fitness facility;

(2) Is installed according to manufacturer instructions;

(3) Has controlled access that prevents unauthorized entry by anyone other than facility staff;

(4) Has functioning equipment necessary to ensure safe water quality and cleanliness;

(5) Is used only by facility staff and students for the purpose of swimming instruction; and

(6) Is not used for rental, parties, or open swimming sessions by fitness facility members or customers.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.